

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Zim Sessoms	Team: Squad #16	CCRB Case #: 202305057	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 06/02/2023 11:00 PM	Location of Incident: 109 Belmont Avenue	18 Mo. SOL 12/2/2024	Precinct: 73		
Date/Time CV Reported Tue, 06/06/2023 11:27 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Tue, 06/06/2023 11:27 AM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO David Damico	16358	957509	073 PCT
2. PO William Russ	02660	964746	073 PCT
3. SGT Christopher Musa	03353	952040	073 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT Thomas Turner	00000	926232	073 PCT
2. PO Matthew Strzelczyk	02191	953453	073 PCT

Officer(s)	Allegation	Investigator Recommendation
A . PO David Damico	Abuse: Police Officer David Damico stopped the vehicle in which § 87(2)(b) was an occupant.	A . Within NYPD Guidelines
B . PO William Russ	Abuse: Police Officer William Russ stopped the vehicle in which § 87(2)(b) was an occupant.	B . Within NYPD Guidelines
C . SGT Christopher Musa	Abuse: Sergeant Christopher Musa stopped the vehicle in which § 87(2)(b) was an occupant.	C . Within NYPD Guidelines
D . PO David Damico	Abuse: Police Officer David Damico searched the vehicle in which § 87(2)(b) was an occupant.	D . Within NYPD Guidelines
E . PO David Damico	Abuse: Police Officer David Damico interfered with § 87(2)(b) use of a recording device.	E . Substantiated
F . PO David Damico	Discourtesy: Police Officer David Damico spoke discourteously to § 87(2)(b)	F . Unfounded
G . PO David Damico	Abuse: Police Officer David Damico damaged § 87(2)(b) property.	G . Unable to Determine

Case Summary

On June 6, 2023, § 87(2)(b) filed this complaint with the CCRB via telephone.

On June 2, 2023, at approximately 11:00 PM, at 109 Belmont Avenue in Brooklyn, Sergeant Christopher Musa and Police Officers David Damico and William Russ, all of the 73rd Precinct, stopped the vehicle § 87(2)(b) was sitting in (**Allegations (A-C) Abuse of Authority, Within NYPD Guidelines**). PO Damico then searched the vehicle (**Allegation (D) Abuse of Authority, Within NYPD Guidelines**). PO Damico returned to the driver's seat of his police vehicle after the stop concluded. § 87(2)(b) then approached the police vehicle recording with his cell phone in hand. PO Damico then extended his arm out the police vehicle's window, made contact with § 87(2)(b) hand that was holding his cell phone, and allegedly told him, "Get that phone the fuck out my face" (**Allegation (E) Abuse of Authority, Substantiated**) (**Allegation (F) Discourtesy, Unfounded**). § 87(2)(b) phone fell to the ground as a result of the contact and was allegedly damaged (**Allegation (G) Abuse of Authority, Unable to Determine**). PO Damico and his fellow officers then drove away from the scene. § 87(2)(b) was issued a summons for idling his vehicle (BR 12).

Footage was obtained from the Body-Worn Cameras (BWC) of five officers (BR 09,10,14). The investigation also obtained cell phone footage provided by § 87(2)(b) (BR 02, 11). The investigation is not in possession of additional video footage.

Findings and Recommendations

Allegation (A) Abuse of Authority: Officers stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (B) Abuse of Authority: Police Officer William Russ stopped the vehicle in which § 87(2)(b) was an occupant.

Allegation (C) Abuse of Authority: Sergeant Christopher Musa stopped the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) (BR 03) stated he was talking to one of his friends while in the driver seat of another friend's parked Chrysler Crossfire, with the engine running. § 87(2)(b) did not provide either of his friends' names to the investigation. A black unmarked vehicle subsequently parked on the passenger side of § 87(2)(b) friend's vehicle. § 87(2)(b) had previously seen this vehicle driving by twice before it stopped next to their vehicle. PO Damico, PO Russ, and SGT Musa approached their vehicle. PO Damico informed § 87(2)(b) that he was sitting in a vehicle with the engine running. At the conclusion of the vehicle stop, § 87(2)(b) was given a summons for idling his engine.

PO Damico (BR 13) stated that he and his fellow officers observed § 87(2)(b) sitting in a parked vehicle with the engine idling. The officers were specifically monitoring § 87(2)(b) and his vehicle due to him being a known drug dealer who specifically sells drugs in that area. PO Damico then drove around the block and returned to the location where § 87(2)(b) was located and parked their vehicle next to § 87(2)(b) to conduct the vehicle stop. PO Damico could not recall which officer made the decision to stop § 87(2)(b) vehicle, but he and the other officers likely made comments about observations of the vehicle. PO Damico believed the engine was running due to the illumination of the dashboard but could not recall if he heard the engine running. PO Damico stated a civilian is in violation of engine idling when they sit in a vehicle for longer than three minutes while the engine is running. At the conclusion of the vehicle stop, PO Russ issued § 87(2)(b) a summons for idling his vehicle.

The investigation was able to make a determination without SGT Masa and PO Russ' testimony.

Summons #§ 87(2)(b) (BR 12) issued to § 87(2)(b) lists that § 87(2)(b) was observed in a parked motor vehicle with the engine idling for more than three minutes. The summons was issued by PO Russ.

NYC Administrative Code 24-163 (BR 06) states that no person shall idle the engine of a motor vehicle for longer than three minutes with exception to legally authorized emergency vehicles.

It is undisputed that § 87(2)(b) was sitting in the driver seat of his friend's vehicle while the engine was running and that the officers drove past the vehicle at least once before retuning and approaching it. § 87(2)(g)

It is therefore recommended that **Allegations A, B, and C** be closed as **Within NYPD Guidelines**.

Allegation (D) Abuse of Authority: Police Officer David Damico searched the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) (BR 03) stated that while PO Damico was looking through the windows of the vehicle with his flashlight, § 87(2)(b) told PO Damico, "It ain't nothing in there, the car's not stolen, the plate's not stolen... What're you doing, why do you keep harassing me?" PO Damico then searched the front seat area of the vehicle, the rear passenger area, and the trunk of the vehicle.

PO Damico (BR 13) stated when they first observed § 87(2)(b) vehicle, they became aware that the license plate on the vehicle did not match the vehicle as it was a Mississippi license plate, making it likely that the vehicle was not registered. PO Damico did not provide a make and model of the vehicle the Mississippi license plate was registered to. PO Damico could not independently recall if he ran a license plate check, but stated he very likely did that night as it was something he would have done. In PO Damico's previous interaction with § 87(2)(b) his previous vehicle had a New Jersey license plate that also did not match the vehicle. PO Damico did not search the vehicle, but acknowledged shining his flashlight where the VIN would be located in an attempt to find the VIN plate in order to verify the registration of the vehicle. After locating the VIN, PO Damico attempted to search the VIN number but was unable to do so because he was interrupted by a nearby civilian who was presumed to be a friend of § 87(2)(b) by attempting to get too close to the ongoing investigation.

In PO Damico's BWC (BR 09), at 3:36, PO Damico informs § 87(2)(b) that the plates on his vehicle do not match the vehicle. At 4:39, PO Damico tells SGT Musa that he is going to run the VIN of the vehicle. At 4:41, PO Damico flashes his flashlight at the front driver's side door jamb. At 4:42, § 87(2)(b) tells PO Damico that the car is not stolen, to which PO Damico responds he must double-check because the license plate on the vehicle does not match the car. At 4:57, PO Damico shines his flashlight at the corner of the front windshield. At no point in the BWC does PO Damico enter the vehicle or open the trunk.

In People v. Class, 63 N.Y.2d 491 (1984) (BR 05), the court acknowledged that a VIN inspection is normally a lesser invasion of privacy than a full-blow search due to the fixed, known, and readily accessible location of a VIN number on a vehicle. Consequently, it may well be that some lesser justification than probable cause would be appropriate. The court further stated there is compelling police interest in the positive identification of vehicles.

In People v. Reyes, 130 Misc. 2d 1064 (1986) (**BR 15**), the court ruled that when given reasonable basis to ascertain the ownership of a vehicle, an officer may conduct a search that is tailored only to obtain information mandated for vehicle identification. Such a search is considered the least intrusive method for reliably verifying ownership.

§ 87(2)(b) specific allegation that PO Damico entered his vehicle and searched inside is unfounded based upon BWC evidence. § 87(2)(g)

it is recommended that **Allegation D** be closed as **Within NYPD Guidelines**.

Allegation (E) Abuse of Authority: Police Officer David Damico interfered with § 87(2)(b) use of a recording device.

Allegation (F) Discourtesy: Police Officer David Damico spoke discourteously to § 87(2)(b).

Allegation (G) Abuse of Authority: Police Officer David Damico damaged § 87(2)(b) property.

§ 87(2)(b) (**BR 03**) stated that he began to follow PO Damico with his cell phone in hand as PO Damico returned to his police vehicle after the conclusion of the stop. § 87(2)(b) had been recording on his cell phone since the beginning of the incident. § 87(2)(b) got within approximately one foot of PO Damico, who was seated in the driver's seat of his police vehicle. PO Damico told § 87(2)(b) "Get that phone the fuck out my face," extended his arm out the window, and then swung it backwards into the back of § 87(2)(b) left hand, causing his phone to fall three feet away into the street and cracking the screen.

In PO Damico's BWC (**BR 09**), at 7:54, PO Damico enters his car as § 87(2)(b) is yelling at him. At 7:56, PO Damico tells § 87(2)(b) not to get near his car and to get away from the car. At 7:57, it appears that § 87(2)(b) is holding his phone in front of his body by the driver side window as the back is facing towards PO Damico. At 7:58, PO Damico moves his left arm in a sweeping motion from right to left and appears to make contact with § 87(2)(b) hand. At 7:59, § 87(2)(b) exclaims, "And you knocked my phone down!" At 8:01, PO Damico tells § 87(2)(b) "Don't get near the car," and drives off.

In footage submitted by § 87(2)(b) (**BR 02**), at 4:47, § 87(2)(b) points his cell phone camera at PO Damico as he walks away from the § 87(2)(b) and PO Damico looks at the phone as he walks away. PO Damico constantly looks back at § 87(2)(b) before he enters his police vehicle. At 5:04, § 87(2)(b) walks towards PO Damico who is now seated in the driver's seat of the police vehicle. At 5:06, PO Damico points towards the phone and tells § 87(2)(b) not to get near his car. At 5:07 PO Damico swings his arm backwards and appears to make contact with § 87(2)(b) phone or hand, resulting in the phone dropping on the ground.

PO Damico (**BR 13**) stated that his position of being seated within the vehicle was tactically disadvantageous. Due to this, PO Damico extended his arm outward to prevent § 87(2)(b) from getting closer to his vehicle, and knocking down his phone was incidental as he was trying to

protect himself. PO Damico further explained that § 87(2)(b) is known to carry a switchblade in the past and he was unaware of what object § 87(2)(b) had in his hand while approaching him. PO Damico was aware of § 87(2)(b) holding his cell phone during the incident, but was not aware whether § 87(2)(b) was still holding his phone when he approached his vehicle. PO Damico believed § 87(2)(b) could have potentially harmed him if he wanted to due to his anger and had a history of being a violent individual. PO Damico acknowledged that § 87(2)(b) is not known to assault officers. PO Damico did not observe any sudden movements from § 87(2)(b) but stated sudden movements do not matter in this situation as if someone wanted to stab him in the face, they could do it instantly. PO Damico stated § 87(2)(b) was approximately two feet from the driver's seat of his police vehicle when he approached him. After being show footage from his BWC, PO Damico was asked if he was able to see what § 87(2)(b) was holding when he approached the police vehicle, to which PO Damico stated he had no knowledge of what § 87(2)(b) was holding in his hand at that time and was unaware the item was § 87(2)(b) cell phone. PO Damico was unaware if any damage was caused to § 87(2)(b) phone, and he denied ever using any profanity towards § 87(2)(b).

NYPD Admin Guide 304-21 (BR 07) states that individuals have a right to lawfully observe and/or record police activity. An officer should not intentionally prevent, or attempt to prevent, an individual from recording police activities.

§ 87(2)(g) PO Damico acknowledged that § 87(2)(b) was previously holding a phone and BWC captures § 87(2)(b) holding an object that distinctively resembles a phone, § 87(2)(g)

Furthermore, § 87(2)(b) approaching the police vehicle while recording was not interfering with any police action as § 87(2)(b) had already received his summons and the vehicle stop had concluded. § 87(2)(g)

Therefore, it is recommended that **Allegation E** be closed as **Substantiated**.

Neither the footage provided by § 87(2)(b) nor the BWC of PO Damico capture PO Damico using profanity or telling § 87(2)(b) to “get that phone the fuck out my face.”

It is therefore recommended that **Allegation F** be closed as **unfounded**.

§ 87(2)(g)

Therefore, it is recommended that **Allegation G** be closed as **Unable to Determine**.

Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED]
- PO Damico has been a member of service for eight years and has been a subject in eight CCRB complaints and twenty-four allegations, of which four were substantiated:
 - CCRB Case #201903126 involved a substantiated allegation of a threat of force against PO Damico. The Board recommended Command Discipline and the NYPD imposed no disciplinary action.
 - CCRB Case #202006217 involved substantiated allegations of physical force, threat of force and discourtesy against PO Damico. The Board recommended charges and the NYPD has not yet imposed discipline. § 87(2)(g) [REDACTED]
- SGT Musa has been a member of service for eleven years and has been a subject in thirteen CCRB complaints and thirty-one allegations, eight of which were substantiated:
 - CCRB Case #201605419 involved allegations of frisk and a vehicle search. The Board recommended formalized training and the NYPD imposed the recommendations.
 - CCRB Case #201908128 involved an allegation of entry of premises. The Board recommended formalized training and the NYPD imposed the recommendations.
 - CCRB Case #202003171 involved an allegation of discourtesy. The Board recommended command discipline and the NYPD imposed the recommendations.
 - § 87(2)(g) [REDACTED]
- PO Russ has been a member of service for six years and has been a subject in six CCRB complaints and fourteen allegations, none of which were substantiated. § 87(2)(g) [REDACTED]

Mediation, Civil, and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- As of November 20, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (BR 18).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 16

Investigator:	<u>Zim Sessoms</u>	<u>Inv. Zim Sessoms</u>	<u>12/14/23</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Patrick Yu</u>	<u>IM Patrick Yu</u>	<u>12/20/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date